IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI, (COURT-II)

Item No. 2
CA(CAA)-56/ND/2021

IN THE MATTER OF:
M/s.Yanmar India Pvt.Ltd. And M/s.Yanmar Engine Manufacturing India Pvt.Ltd. ... **Applicant/Petitioner**

Under Section: 230-232

Order delivered on 31.05.2021

CORAM:
SHRI. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (J)

SHRI. L. N. GUPTA, HON'BLE MEMBER (T)

PRESENT:
None

ORDER

Order is pronounced in the Open Court today.

Sd/-
(L. N. GUPTA)
MEMBER (T)

Sd/-
(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

(Sapna)

NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT- II)

C.A.(CAA)-56/ND/2021

IN THE MATTER OF SCHEME OF AMALGAMATION :

BETWEEN

YANMAR INDIA PRIVATE LIMITED

... Applicant No.1/Transferor Company

WITH

YANMAR ENGINE MANUFACTURING INDIA PRIVATE LIMITED

... Non- Applicant / Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on : 31.05.2021

Section: 230 to 232 of the Companies Act, 2013

CORAM

SH. ABNI RANJAN KUMAR SINHA, HON'BLE MEMBER (JUDICIAL)

SH. L. N. GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT

For Applicants : Mr. Pawan Sharma, Advocate

ORDER

PER SHRI L.N. GUPTA, MEMBER (T)

Under consideration is the Application No. C.A.(CAA)56/ND/2021 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made in the Application is to dispense with convening and holding of the meetings of Shareholders and Creditors of the Transferor Company in connection with the 'Scheme of Amalgamation' **('Scheme')**, which shall take effect from the 'Appointed Date' of 01.04.2020.

2. That Yanmar India Private Limited (hereinafter referred to as the **"Transferor Company")** having CIN no. U51909DL2011FTC212314 is a Private Limited Company incorporated under the Erstwhile Companies Act, 1956 on 07.01.2011. The registered office of the Transferor Company No.1 is situated at 1568, Church Road, Kashmere Gate, North Delhi – 110006.

3. That Yanmar Engine Manufacturing India Private Limited (hereinafter referred to as the **"Transferee Company"**) having CIN no. U29300TN2018 FTC125720 is a company incorporated under the Companies Act, 2013 on 09.11.2018. The registered office of the Transferee is situated at First Floor, Door no.-19, Khader Nawaz Khan Road, Nungambakkam, Chennai - 600034, Tamil Nadu.

4. That the present Petition has been filed by the Transferor Company. That the 'Transferor' Company is hereinafter referred to as 'Applicant

Company'. That the Registered office of the Applicant Company is in Delhi and therefore, the jurisdiction lies with this Bench.

5. However, the registered office of the Transferee Company is situated in Tamil Nadu, which does not fall within the Territorial Jurisdiction of this Bench. Therefore, the Transferee Company shall seek approval of the Scheme from the Bench of the appropriate Jurisdiction. That the directions being passed vide this order shall pertain to the Applicant Company only.

6. It is perused from the record that the Board of Directors of the Applicant Company has approved the proposed 'Scheme of Amalgamation', vide its meeting held on 23.02.2021.

7. It is stated by the Applicant Company that the aforesaid Scheme of Amalgamation will have the following benefits :

a) *"Optimum and efficient utilization of resources either in the form of assets and sharing of ancillary facilities;*
b) *Benefit of obtaining synchronisation of synergies;*
c) *Structured, sharper and better management focussing on holistic growth of the businesses;*
d) *Rationalizing multiple subsidiaries in the group to ensure optimised legal entity structure more aligned with the business by reducing the number of legal entities and re-organising the legal entities in the group structure;.."*

8. That the Applicant Company has filed its Affidavit in compliance of Section 230(2)(a) of Companies Act 2013 submitting therein that the Applicant Company is not under any prosecution/ investigation/ inquiry under the Companies Act 2013.

9. That the Applicant Company has also placed on record the Certificate from the Statutory Auditors confirming that its Accounting Standards are in conformity with the provision of Section 133 of the Companies Act 2013.

10. That the Applicant Company have filed its Memorandum of Association (MoA) and Articles of Association (AoA). The Applicant Companies has also filed its latest Balance Sheets as on 31.03.2020.

11. That the position of the Applicant Company regarding its no. of Shareholders and Creditors and their Consent through Affidavits, averred at Para 17 - 19 of the Application, is summarised below:

Company	No. of Share holders	Percentage of Shareholders given Consent	No. of Unsecured Creditors	Percentage of Unsecured Creditors given Consent (in value)
Yanmar India Private Limited Applicant No.1 Company/ Transferor	2	100%	57	6 (97.93% in value)

12. It is submitted that both the shareholders of the Applicant Company have given 'no objection' to the Scheme on affidavits. Therefore, the requirement of convening the Meetings of Shareholders in respect of the Applicant Company is dispensed with.

13. That the '97.93% in value' of the unsecured creditors in the Applicant Company have given 'no objection' to the Scheme on affidavits. Therefore, the requirement of convening the Meetings of Unsecured Creditors in respect of the Applicant Company is dispensed with.

14. Since there is no Secured Creditor in the Applicants Company, the requirement of convening their meeting does not arise.

15. **The Application is allowed in the aforesaid terms in respect of Applicant Company only.**

-S/d-
(L.N. Gupta)
Member (T)

-S/d-
(Abni Ranjan Kumar Sinha)
Member (J)